

Tentative Rulings and Resolution Review Hearings
September 21, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.

CASE NUMBER: 23CV-0202392

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on August 6, 2026 to Plaintiff's counsel Sharona Eslamboly Hakim for failure to appear on August 3, 2026. The August 3, 2026 hearing date was set by Plaintiff when filing a Petition for Approval of Compromise of Claim for Minor on June 30, 2026. Counsel filed a written response to the Order to Show Cause on September 17, 2026, which was late as the written response was due no less than five court days prior to today's hearing. Counsel provides that a second Petition was filed because part of the first Petition was rejected. In reviewing the file, the Court notes that the Petition was filed on June 30, 2026 and the documents rejected by the clerk (duplicate Guardian ad Litem Application) were not submitted until July 9, 2026. Counsel then filed a duplicate Petition for Approval without a hearing date on July 16, 2026 and took no action to vacate the August 3, 2026 date set by Plaintiff. Defendant appeared at the August 3, 2026 hearing and the Court prepared a tentative ruling. Had counsel checked the Court's calendar, it would have been apparent that the hearing set by Plaintiff was not vacated. The court does not find that Plaintiff's counsel has presented sufficient excuse for failing to appear at

the hearing noticed by Plaintiff. Without sufficient excuse for failing to appear, sanctions are imposed against Counsel for Plaintiff Sharona Eslamboly Hakim in the amount of \$250. The clerk is directed to prepare an Order of Sanctions.

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Truth Amarant's claims. Deborah Amarant was appointed as the minor's Guardian ad Litem on September 22, 2023. Plaintiff has filed three separate minor's compromise Petitions without noting that any are an Amended Petition. They all appear to be nearly identical. The only change the Court notes is changing the bank for the "Trust Account." The Court provided the tentative ruling below on August 3, 2026, however the most recent Petition was not corrected to address any of the issues noted below. The Court will consider the Petition filed September 17, 2026 to be the operative Petition.

California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition does not contain sufficient information for the Court to find that the settlement is in the minor's best interest. No medical records were provided and it is unclear if the minor will need future medical care, including scar revision. If future medical care is necessary, information regarding possible costs needs to be provided. It is unclear how the parties arrived at a settlement of \$155,000 and no information was provided regarding insurance policy limits.

Even if the Court were to be provided sufficient information to determine that the settlement is in the best interest of the minor, there are still issues with how the money will be distributed. The Petition lists a guardianship of the estate under this case number. There is no guardianship of the estate in this case. If the intent is to place the money in a trust account (versus a blocked account), a guardianship of the estate will need to be established in probate court. Regarding costs, counsel requests a total of \$5,447.98, with the majority of the costs being attributed to One Legal, Lopez & Associates, and Attorneys to Go with no further explanation for the reasons for the cost. More detail is necessary in order for the Court to find that these costs were reasonably incurred.

Petitioner will need to file an Amended Petition that corrects all defects noted above. The future hearing date is dependent on whether Petitioner intends to establish a guardianship of the estate or if the intent is actually to place the net settlement in a blocked account. Counsel shall attend the hearing and should be prepared to inform the Court whether the intent is to place the settlement funds in a blocked account, or if a guardianship of the estate needs to be established. A new hearing date will be selected at the hearing. The Amended Petition shall be filed sixteen court days prior to the hearing. **An appearance by counsel only is necessary on today's calendar. Petitioner and the minor need not attend today's hearing.**

CONNOR VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208664

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiff Sean Connor, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on September 11, 2025 and no Proof of Service of Summons has been filed. At the previous hearing on July 13, 2026, the Court noted that a Substitution of Attorney was filed on June 4, 2026 and that Plaintiff was represented by counsel. However, because a response filed by counsel indicated that new counsel would need to be retained, the Court continued the hearing on the Order to Show Cause to today. Plaintiff was ordered to file an update regarding counsel no less than five court days prior to today's hearing. Plaintiff did not file an update regarding counsel and did not file a written response to the Order to Show Cause. **An appearance is necessary on today's calendar.**

IN RE: COOK

CASE NUMBER: 26CV-0211052

Tentative Ruling on Petition for Change of Name: Petitioner Sereana Marie Cook seeks to change her name to Sereana Marie Plexi. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

GARCIA-BROWER VS. SHACK, INC.

CASE NUMBER: 25CV-0209453

Tentative Ruling on Order to Show Cause Re: Contempt for Respondent's Failure to Comply with Court's Order to Respond to Investigative Subpoena Issued by the Labor Commissioner: On May 26, 2026, the Court ordered Respondent Shack, Inc. to produce the documents requested in the subpoena issued by Petitioner Lilia Garcia-Brower, Labor Commissioner. The Court set the compliance date as June 26, 2026. There are Proofs of Service on file indicating that the Order was served on Respondent via its Agent for Service of Process, Daniel Lackmann with personal and service by mail on June 15, 2026. On July 6, 2026, Petitioner filed a Notice of Order to Show Cause Re: Contempt Hearing. A Proof of Service filed on July 28, 2026 indicates that substitute service was made on Daniel Lackmann on July 20, 2026, however, Item 5.b. is incomplete as the server did not indicate the name or description of the competent member of the household that the documents were left with. The attached document provides that the documents were left in the space on the front door handle then mailed to the Stallion Lane address and a PO Box.

The Court does not have a valid Proof of Service indicating that Respondent received proper notice of the Order to Show Cause Hearing. The Proof of Service does not reflect service by mail. The document attached to the Proof of Service is from Linda Field, Deputy Labor Commissioner I, however, it is not signed under penalty of perjury or otherwise verified. Therefore, it is not competent evidence that the documents were mailed to Respondent. The service described is not valid substitute service. Without proper notice to Respondent, the Order to Show Cause is dropped from calendar.

IN RE: INIQUEZ

CASE NUMBER: 26CV-0210941

Tentative Ruling on Petition for Change of Name: Petitioner Venancio Iniquez seeks to change his name to Venancio Iniquez-Darrough. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file. The Court notes that Petitioner's middle name was not included in the Order to Show Cause. Prior to executing the Decree Changing Name, Petitioner will need to clarify if he would like his middle name to be included in the Decree Changing Name.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b): Plaintiffs Tiffanie Jones, Kim Harmon and Stephen Huston seek relief pursuant to CCP § 473(b). Defendant Sally Taylor opposes the motion. The motion was originally on calendar on August 31, 2026. Defendant appeared and counsel argued that while he received the moving papers, they were served electronically and he had not consented to electronic service and that his office policy is to not accept electronic service. A represented party must accept electronic service. CCP § 1010.6(b)(2). However, in order to allow Defendant the opportunity to provide an Opposition, the Court continued the hearing to today and ordered that any Opposition be filed by September 11, 2026 and any reply be filed by September 16, 2026. Defendant filed an Opposition on September 10, 2026. Plaintiffs did not file a Reply.

Plaintiffs seek relief from the order of dated May 11, 2026. That order granted Defendant's Motion to Terminate Case which was heard on May 11, 2026. The motion was properly noticed, but Plaintiffs did not file an Opposition. Counsel for Plaintiffs, Daniel Henderson, appeared at the hearing and argued the merits of the motion. The Court adopted the tentative ruling, which was to grant the motion. Granting of the motion resulted in a dismissal of Plaintiffs' Complaint. A Motion for Reconsideration was filed on May 19, 2026, however, it was denied on June 1, 2026 for being untimely filed and there being insufficient proof that Defendant received notice of the Motion for Reconsideration. A Judgment was entered on August 3, 2026 in favor of Defendant.

In support of this motion, Eric Alan Berg provided a declaration stating that he is the principal of the Law Office of Berg & Associates and as the principal, he is responsible for supervision of this matter. Mr. Berg failed to ensure that the Motion for Reconsideration was timely filed and properly noticed. Mr. Berg also failed to ensure that a written opposition was filed in the Motion to Terminate Case. Mr. Berg provides that these omissions were the result of his own oversight and not the result of any willful conduct, bad faith, or defiance of the discovery statutes.

CCP § 473(b) has both a discretionary provision and a mandatory provision. Plaintiffs move under the mandatory provision.

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

CCP § 473(b).

Plaintiffs have presented evidence that their attorney's mistake, inadvertence, and neglect resulted in a dismissal being entered. This motion was filed within the required six-month period for bringing a motion. Therefore, the relief requested is mandatory unless the Court finds that the dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

While it is unclear from the moving papers the exact relief requested, based on the proposed order attached to the moving papers, it appears that Plaintiffs are seeking a denial of the Motion to Terminate Case. However, the neglect of counsel was failure to file a written Opposition. Allowing Plaintiffs to file a written Opposition would not necessarily result in the Motion to Terminate Case being denied. Therefore, the only relief Plaintiffs are entitled to is the opportunity to file a written Opposition to the Motion to Terminate Case. Defendant argues that none of the evidence submitted meets the definitions of mistake, inadvertence, surprise, or neglect. The Court finds that Plaintiffs' counsel has shown that he and his firm were neglectful in failing to file a written opposition.

The Court will set aside the Judgment entered on August 3, 2026 and reset the Motion to Terminate Case for hearing, which will allow Plaintiffs to file a written opposition. However, this will not occur until Defendant is compensated for legal fees and costs reasonably incurred based on Plaintiff's counsel's neglect.

(1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.

(2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473(c).

Defense counsel may submit an affidavit detailing the attorney fees and costs incurred for any work done on the matter after May 11, 2026. The Court intends to order that Plaintiff's counsel pay all reasonable legal fees and costs incurred due to Plaintiff's counsel's neglect in this matter. Because this is not a default or default judgment, CCP § 473(c)(2) does not apply. Given the history of monetary sanctions in this matter that have not been paid by Plaintiffs and the long history of noncompliance, the Court will set the reasonable legal fees and costs and require payment by Mr. Berg (not Plaintiffs) prior setting aside the judgment and resetting the Motion to Terminate. Per the request made in the Opposition, the Court will also require that monetary sanctions previously imposed but not paid be paid prior to relief being granted.

Once the above conditions have been satisfied, hearing on the Motion to Terminate Case will be set and the Court will set a briefing schedule for an Opposition and Reply. When the hearing is set, the Court will allow Plaintiffs to file an Opposition and Defendant to file a Reply. The Court will then hear the Motion to Terminate Case on the merits.

The Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b) is **GRANTED**. Relief is conditioned on compensation to Defendant for legal fees and costs reasonably incurred in an amount to be determined by the Court and payment of unpaid monetary sanctions previously imposed. Plaintiffs did not submit a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are ordered to submit an order consistent with the Court's ruling.

An appearance by both counsel is necessary in order to determine when Defendant will be able to submit an affidavit regarding legal fees and costs incurred after May 11, 2026. Once that sum has been determined and paid by Mr. Berg, and previously imposed sanctions have been paid, the Court will set aside the Judgment and set the Motion to Terminate Case for hearing. The Court intends on setting a status date in approximately 45-60 days regarding status of payment and to calendar the new motion date.

MOORE VS. ROCKET MORTGAGE, LLC, ET AL.

CASE NUMBER: 26CV-0210396

Tentative Ruling on Order to Show Cause Re: Preliminary Injunction: On August 28, 2026, the Court granted Plaintiff Donna Moore's request for a Temporary Restraining Order preventing a foreclosure sale from occurring on August 31, 2026. The Court set the Order to Show Cause Re: Preliminary Injunction within the required 22 days. Defendant Rocket Mortgage opposed the ex parte request for a TRO and now opposes the Preliminary Injunction. Despite being properly noticed, Defendant Clear Recon Corp. did not file an Opposition.

The Court notes that Donna Moore did not bring this suit in her individual capacity, but as the successor in interest to Phillip M. Crippen.

In considering whether to issue a preliminary injunction, a court evaluates two interrelated factors: the likelihood plaintiff will prevail on the merits at trial and the interim harm to plaintiff or defendant if the court denies or grants the preliminary injunction. *Continental Baking Co. v. Katz* (1968) 68 Cal. 2d 512, 528. These two factors operate on a sliding scale: "[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue." *Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.*, (2016) 6 Cal.App.5th 1178, 183. Plaintiff carries the burden of proof and persuasion on these issues. *O'Connell v. Superior Court* (2006) 141 Cal. App. 4th 1452, 1481.

"The granting or denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the defendant should or that he should not be restrained from exercising the right claimed by him." The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action. Thus, the court examines all of the material before it in order to consider "whether a greater injury will result to the defendant from granting the injunction than to the plaintiff from refusing it; . . ." In making that determination the court will consider the probability of the plaintiff's ultimately prevailing in the case and, it has been said, will deny a preliminary injunction unless there is a reasonable probability that plaintiff will be successful in the assertion of his rights. As was said in *Family Record Plan, Inc. v. Mitchell* (1959) 172 Cal.App.2d 235, 242 [342 P.2d 10], "In the last analysis the trial court must determine which party is the more likely to be injured by the exercise of its discretion [citation] and it must then be exercised in favor of that party [citation]."

Continental Baking Co. v. Katz (1968) 68 Cal. 2d 512, 528, internal citations omitted.

Here, Plaintiff has two claims that remain in the Complaint after remand from Federal Court. The Second Cause of Action alleges a violation of Civ. Code § 2923.5 and the Third Cause of Action alleges violation of Bus. & Prof. Code § 17200.

(a) (1) A mortgage servicer, mortgagee, trustee, beneficiary, or authorized agent shall not record a notice of default pursuant to Section 2924 until both of the following:

(A) Either 30 days after initial contact is made as required by paragraph (2) or 30 days after satisfying the due diligence requirements as described in subdivision (e).

(B) The mortgage servicer complies with paragraph (1) of subdivision (a) of Section 2924.18, if the borrower has provided a complete application as defined in subdivision (d) of Section 2924.18.

(2) (A) A mortgage servicer shall contact the borrower in person or by telephone in order to assess the borrower's financial situation and explore options for the borrower to avoid foreclosure. During the initial contact, the mortgage servicer shall advise the borrower that the borrower has the right to request a subsequent meeting and, if requested, the mortgage servicer shall schedule the meeting to occur within 14 days. The assessment of the borrower's financial situation and discussion of options may occur during the first contact, or at the subsequent meeting scheduled for that purpose. In either case, the borrower shall be provided the toll-free telephone number made available by the United States Department of Housing and Urban Development (HUD) to find a HUD-certified housing counseling agency. Any meeting may occur telephonically.

(B) The mortgage servicer shall notify the borrower during the initial contact required pursuant to subparagraph (A) that a third party, such as a family member, HUD-certified housing counselor,

or attorney, may record a request to receive copies of any notice of default and notice of sale pursuant to the process described in Section 2924b and that receiving a copy of these documents may allow the third party to assist the borrower in avoiding foreclosure.

(b) A notice of default recorded pursuant to Section 2924 shall include a declaration that the mortgage servicer has contacted the borrower, has tried with due diligence to contact the borrower as required by this section, or that no contact was required because the individual did not meet the definition of “borrower” pursuant to subdivision (c) of Section 2920.5.

(c) A mortgage servicer’s loss mitigation personnel may participate by telephone during any contact required by this section.

(d) A borrower may designate, with consent given in writing, a HUD-certified housing counseling agency, attorney, or other advisor to discuss with the mortgage servicer, on the borrower’s behalf, the borrower’s financial situation and options for the borrower to avoid foreclosure. That contact made at the direction of the borrower shall satisfy the contact requirements of paragraph (2) of subdivision (a). Any loan modification or workout plan offered at the meeting by the mortgage servicer is subject to approval by the borrower.

(e) A notice of default may be recorded pursuant to Section 2924 when a mortgage servicer has not contacted a borrower as required by paragraph (2) of subdivision (a) provided that the failure to contact the borrower occurred despite the due diligence of the mortgage servicer. For purposes of this section, “due diligence” shall require and mean all of the following:

(1) (A) A mortgage servicer shall first attempt to contact a borrower by sending a first-class letter that includes the toll-free telephone number made available by HUD to find a HUD-certified housing counseling agency.

(B) The mortgage servicer shall notify the borrower in the first-class letter described in subparagraph (A) that a third party, such as a family member, HUD-certified housing counselor, or attorney, may record a request to receive copies of any notice of default and notice of sale pursuant to the process described in Section 2924b and that receiving a copy of these documents may allow the third party to assist the borrower in avoiding foreclosure.

(2) (A) After the letter has been sent, the mortgage servicer shall attempt to contact the borrower by telephone at least three times at different hours and on different days. Telephone calls shall be made to the primary telephone number on file.

(B) A mortgage servicer may attempt to contact a borrower using an automated system to dial borrowers, provided that, if the telephone call is answered, the call is connected to a live representative of the mortgage servicer.

(C) A mortgage servicer satisfies the telephone contact requirements of this paragraph:

(i) If it determines, after attempting contact pursuant to this paragraph, that the borrower’s primary telephone number and secondary telephone number or numbers on file, if any, have been disconnected.

(ii) If the borrower or the borrower’s authorized agent notifies the mortgage servicer in writing to cease further communication with the borrower. The cease communication notification shall explicitly pertain to the mortgage loan account to be effective. The cease communication notification shall be effective until the borrower or the borrower’s authorized agent rescinds it in writing.

(3) If the borrower does not respond within two weeks after the telephone call requirements of paragraph (2) have been satisfied, the mortgage servicer shall then send a certified letter, with return receipt requested.

(4) The mortgage servicer shall provide a means for the borrower to contact it in a timely manner,

including a toll-free telephone number that will provide access to a live representative during business hours.

(5) The mortgage servicer has posted a prominent link on the home page of its internet website, if any, to the following information:

(A) Options that may be available to borrowers who are unable to afford their mortgage payments and who wish to avoid foreclosure, and instructions to borrowers advising them on steps to take to explore those options.

(B) A list of financial documents borrowers should collect and be prepared to present to the mortgage servicer when discussing options for avoiding foreclosure.

(C) A toll-free telephone number for borrowers who wish to discuss options for avoiding foreclosure with their mortgage servicer.

(D) The toll-free telephone number made available by HUD to find a HUD-certified housing counseling agency.

(f) This section shall apply only to mortgages or deeds of trust described in Section 2924.15.

(g) This section shall apply only to entities described in subdivision (b) of Section 2924.18.

Civ. Code § 2923.5.

Defendant Rocket Mortgage argues that Plaintiff has not provided evidence that Rocket Mortgage is an entity covered by Civ. Code § 2924.18(b), therefore, Plaintiff has not shown that Civ. Code § 2923.5 applies to Defendant Rocket Mortgage. This is true, however, if Civ. Code § 2923.5 does not apply, Civ. Code § 2923.55 would apply. The language in Civ. Code § 2923.55(b)(2)(A) mirrors the language in Civ. Code § 2923.5(a)(2)(A). Both require the mortgage servicer to contact the borrower in person or by telephone to assess the borrower's financial situation prior to recording a Notice of Default. Additionally, Civ. Code § 2923.55(f) mirrors the language in Civ. Code § 2923.5(e). Under either statute, if contact is not made, a mortgage servicer shall attempt contact by sending a first-class letter, attempting phone contact, then sending a certified letter with return receipt requested if contact is not made. The Court notes that the specific information necessary to determine whether Civ. Code § 2924.18(b) applies is information that Rocket Mortgage would have access to, but Plaintiff would likely need to obtain such information through discovery. Because the requirements are the same under either statute, and because the information may not be readily available, the Court will proceed without evidence of which specific statute applies. The result is the same regardless of whether Civ. Code § 2924.18(b) applies.

Defendant argues that Plaintiff delayed in seeking emergency relief. The Court finds that Plaintiff acted diligently by filing the Ex Parte Application just sixteen days after the Order was issued in Federal Court to remand the action to State Court.

Plaintiff has provided evidence that her husband entered into a first position mortgage with Rocket Mortgage (formerly Quicken Loans) on August 17, 2017. Plaintiff's husband died on July 27, 2019 and Plaintiff, who at all relevant times lived in the home, continued making payments on the mortgage. In or around May 2024, Plaintiff suffered financial hardship and she fell behind on loan payments. On or around Dember 15, 2025 Defendant Clear Recon Corp recorded a NOD on behalf of Rocket Mortgage. The Civ. Code § 2923.55(f) declaration indicated that due diligence was exercised in contacting the borrower and the required letter was sent via certified mail, return receipt requested. Plaintiff declared that she was never contacted by telephone, nor was her husband and that there were no missed calls or voicemails. No letter was received by her or on behalf of her deceased husband. After receiving the NOD, Plaintiff contacted Rocket Mortgage to request information concerning procedures to assume the loan following the death of her husband but representatives refused to speak with Plaintiff or provide guidance. The NTS was recorded on or about March 17, 2026 and Plaintiff filed this matter on April 15, 2026. The matter was removed to Federal Court and remanded on August 11, 2026. Plaintiff alleges

that she will suffer irreparable harm if the Trustee Sale occurs because the property is her primary residence.

In connection with the Oppositor, Defendant Rocket Mortgage provided no evidence, instead referring to Plaintiff's evidence as conclusory. An unofficial copy of the NOD is attached to the Verified Complaint filed by Plaintiff. Attached to the NOD is the California Declaration of Compliance in which Yvonne Hohfeldt, Loss Mitigation Officer for Rocket Mortgage checked the box indicating that "The mortgage servicer has exercised due diligence to contact the borrower as required by California Civil Code § 2923.55(f), and after satisfying the telephone call requirements and waiting the required two (2) weeks, the mortgage servicer sent to the borrower via certified mail, return receipt requested, the letter as required by California Civil Code § 2923.55(f)(3)." Ms. Hohfeldt did not check the boxes indicating that the telephone numbers on file had been disconnected or that the borrower notified in writing to cease further communication. There was no Request for Judicial Notice of this Declaration, and even if there had been a request, the Court would not take judicial notice of the truthfulness of statements made therein. The statement of Ms. Hohfeldt is not made under penalty of perjury under the laws of the State of California and is therefore not competent evidence.

Before the Court is a person living in the home to which the certified letter would have been sent. She declares under penalty of perjury that no such letter was ever received. Instead of providing a copy of the letter or any of the certified mail paperwork, Rocket Mortgage refers to the Declaration of Compliance. In a preliminary injunction, the Court is not tasked with deciding the ultimate outcome, but determining whether Plaintiff has shown a likelihood of success on the merits. Based solely on the evidence presented, the Court finds that Plaintiff has shown a likelihood of success on the merits of the Second Cause of Action, noting that the Second Cause of Action may need to be amended dependent on whether Civ. Code § 2924.18(b) applies to Rocket Mortgage.

As to the second prong of interim harm, Plaintiff has presented evidence that she lives in the home that Defendants are attempting to foreclose on. Defendant did not present any evidence in the Oppositor and instead argues Defendant would be prejudiced by ongoing costs, lost interest, and continued depreciation risk. On balance, the Court finds that the interim harm to Plaintiff is far greater than the interim harm to Defendant. A preliminary injunction shall issue.

Because the Court is issuing a preliminary injunction based on the Second Cause of Action, the Court need not address the Third Cause of Action.

The Court finds that Plaintiff has met her burden. The request for a preliminary injunction is **GRANTED** preventing Defendants from foreclosing on the subject property until final adjudication on the merits in this matter. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

REDDING CITY BALLET VS. CHRISTENSEN, ET AL.
CASE NUMBER: 23CV-0203221

Tentative Ruling on Order for Appearance at Judgment Debtor Examination (Diana Christensen): This matter is on calendar regarding Plaintiff Redding City Ballet's Application and Order for Appearance and Examination of Diana Christensen. On August 11, 2026, the Court issued an Order to Appear to judgment debtor Diana Christensen. CCP § 708.110(d) requires that personal service of the Order for Appearance and Examination be made on the debtor "not less than 30 days before the date set for the examination." A Proof of Service was filed on August 25, 2026 reflecting personal service on Diana Christensen on August 20, 2026, which is more than 30 days prior to today's hearing. The examination shall proceed.

Tentative Ruling on Order for Appearance at Judgment Debtor Examination (Darrell Christensen): This matter is on calendar regarding Plaintiff Redding City Ballet’s Application and Order for Appearance and Examination of Darrell Christensen, co-owner of The Redding Arts Project. On August 11, 2026, the Court issued an Order to Appear to judgment debtor Darrell Christensen. CCP § 708.110(d) requires personal service of the Order for Appearance and Examination be made on the debtor “not less than 30 days before the date set for the examination.” There is no proof of service on file. Without proof of service on Darrell Christensen, the matter is dropped from calendar.

STUREMAN, ET AL. VS. CIMAGLIA, ET AL.

CASE NUMBER: 26CV-0209673

Tentative Ruling on Demurrer: Cross-Defendants Louann M. Stureman and Marc B. Stureman demur to the Cross-Complaint filed on July 6, 2026 by Catherine L. Cimaglia, James A. Cimaglia, Daniel F. Harney, Trustee of the Harney Family Trust 2018, Sharon G. Harney, Trustee of the Harney Family Trust 2018, Joanne Miser, individually and as Trustee of the Richard and Joanne Living Trust, Richard D. Miser, individually and as Trustee of the Richard and Joanne Living Trust, John William Rodman, individually and as Trustee of the John Williams Rodman Trust 2019, Catherine J. Schmidt, Kurt C. Schmidt, Kathryn L. Starr, Randy K. Starr, and Beverly Taber, individually and as Trustee of the Giles T. Kellogg Living Trust 2023 dated August 1, 2023.

For purposes of this motion, the Court will refer to Cross-Defendants as the Sturemans and the Cross-Complainants as the Misers.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Craig J. Bassett indicates compliance with this requirement regarding the demurrer.

Request for Judicial Notice. Both parties made several requests for judicial notice and no objections were received. Each request is granted pursuant to Evid. Code §§ 452 and 453.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550. The Cross-Complaint alleges two causes of action. The First Cause of Actions seeks to quiet title to an irrevocable license issued in Shasta County Case No. 194255 and the Second Cause of Action is nuisance. Sturemans demur to both.

First Cause of Action. The Sturemans demur to the First Cause of Action on the basis of claim preclusion because the Misers filed a quiet title cause of action in the previous matter that was summarily adjudicated in favor of the Sturemans. The Court notes that the previous quiet title action was as to an easement, not an irrevocable license.

The Sturemans also assert that one cannot quiet title to an irrevocable license. The irrevocable license at issue is not a property right.

[A] license does not create or convey any interest in the real property; it merely makes lawful an act that otherwise would constitute a trespass. (See 6 Miller & Starr, *supra*, § 15:2, 15-10 [“The licensee has a personal privilege but does not possess either an interest or right in the land or any estate in the property.” (fn. omitted)]; *San Jose Parking, Inc. v. Superior Court* (2003) 110

Cal.App.4th 1321, 1329 [2 Cal. Rptr. 3d 505] [“case law makes clear that licenses create *no* interest in real property”].)

Richardson v. Franc (2015) 233 Cal. App. 4th 744, 758-759.

In a quiet title action, “an action may be brought under this chapter to establish title against adverse claims to real or personal property or any interest therein.” CCP § 760.020(a).

The Sturemans have not provided case law holding that title to an irrevocable license cannot be quieted. As pointed out by the Misers in their opposition to the demurrer, the irrevocable license at issue in the cross-complaint is the functional equivalent to an easement. Because of the equivalencies, the Misers should be able to allege a cause of action for quiet title as to the irrevocable license. The Demurrer to the First Cause of Action is therefore **OVERRULED**.

Second Cause of Action. The Sturemans demur to the Second Cause of action on the basis that the Misers have failed to state a claim because not all elements of a private nuisance claim have been alleged. The elements of a private nuisance claim are set forth in CACI 2021. There are nine elements and the Misers have failed to allege all of them. However, the missing elements can be inferred from the allegations made by the Misers. For example, the Misers did not specifically allege that the Sturemans conduct was intentional and unreasonable or unintentional but negligent or reckless. However, the Misers alleged in ¶ 27 that the Sturemans “have blocked off partial use to Sandpit Road, permitting only a single lane of traffic.” The obvious inference is that the blocking was intentional. The Misers have sufficiently pleaded a private nuisance cause of action that provides adequate notice to the Sturemans. The Demurrer to the Second Cause of Action is **OVERRULED**.

The Demurrer is **OVERRULED**. The Sturemans provided a proposed Order that will be modified to reflect the Court’s ruling.

The Sturemans raised the issue of the Mandatory Settlement Conference date remaining after the trial date was vacated. The court intends on vacating the existing settlement conference. A new settlement conference will be set at the time the trial is set.

SYNCHRONY BANK VS. SILACCI

CASE NUMBER: 24CVG-01485

Tentative Ruling on Order to Show Cause Re: Sanctions: On July 30, 2026, the Court issued an Order to Show Cause Re: Sanctions to Plaintiff and Counsel Gurstel Law Firm PC for failure to timely obtain a default judgment as required by CRC 3.740(f). Proof of Service of Summons was filed on November 4, 2024. Plaintiff was required to obtain a default judgment within 360 days of the Complaint being filed on October 1, 2024. The Court notes that after the Order to Show Cause issued, Plaintiff filed a Motion for Entering Judgment Pursuant to Defendant’s Default Under the Settlement Agreement that is noticed for November 16, 2026. Hearing on the Order to Show Cause is continued to **Monday, November 16, 2026 at 8:30 a.m. in Department 63.** **No appearance is necessary on today’s calendar.**

WEBB VS. SIMPSON, ET AL.

CASE NUMBER: 25CV-0207020

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on July 1, 2026 to Plaintiff Amanda Kristeen Webb for her failure to appear at the prior hearings on May 11, 2026 and June 22, 2026. Plaintiff received notice of both hearings via mail. No written response has been filed. The Court notes monetary sanctions have already been imposed for Plaintiff’s failure to appear on May 11, 2026. Without sufficient excuse for failing to appear and because prior sanctions have been ineffective in ensuring Plaintiff’s attendance, the matter is dismissed without prejudice pursuant to Gov. Code § 68608(b). The clerk is directed to vacate any future dates and close the file.

WILKINSON VS. WILKINSON, ET AL.

CASE NUMBER: 23CV-0202523

Tentative Ruling on Motion to Dismiss Complaint and Entire Action for Failure to Join Indispensable

Party: Roe 1 Teresa Malcolm moves to dismiss the entire action, which would constitute the Complaint filed by Plaintiff Bette Sue Wilkinson on June 21, 2023 and the Cross-Complaint filed by Robert N. Wilkinson on August 28, 2023. Roe 1 did not file a proof of service for the motion. Despite there being no proof of service on file, Defendant filed an Opposition. The Opposition was only served on Roe 1. The Court notes that Plaintiff is deceased, however, her counsel has not been relieved and Plaintiff is still a party entitled to notice. Without any notice to Plaintiff's counsel, the motion is **DENIED** without prejudice. Roe 1 did not provide a proposed Order as required by Local Rule of Court 5.17(D). Roe 1 is to prepare the Order.

The Court notes that the matter is scheduled for a Mandatory Settlement Conference this afternoon at 1:30 p.m. The Court requests that Defendant gather all documents related to the probate matter in Humboldt County so that the Court can review any Letters that issued. The Court expects that counsel for all parties, including Plaintiff's counsel, will appear so that the parties and the Court can work collaboratively to determine the most efficient manner for this case to proceed.

9:00 a.m. – Review Hearings

ALLEN VS. SHASTA COUNTY, ET AL.

CASE NUMBER: 25CV-0208696

This matter is on calendar for review regarding status of service. A First Amended Complaint was filed on September 4, 2026. Plaintiff filed a status statement addressing the status of the investigation, however, the status statement did not address service. Plaintiff is reminded of the timelines set forth in CRC 3.110 and orders that the First Amended Complaint and Summons be served. The matter is continued to **Monday, December 7, 2026 at 9:00 a.m. in Department 63** for status of service and responsive pleading. A status statement is due no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

AMARANT VS. MONARCH LEARNING CENTER CHARTER SCHOOL, ET AL.

CASE NUMBER: 23CV-0202392

This matter is on calendar for review regarding status of minor's compromise. Counsel filed a Petition for Approval on September 17, 2026 that was noticed for 8:30 a.m. this morning, however a new date will need to be selected for hearing on an Amended Petition. The review hearing will be continued to the same date at 9:00 a.m. **An appearance is necessary on today's 8:30 a.m. calendar only.**

CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.

CASE NUMBER: 24CV-0205268

This matter is on calendar for review regarding status of default and default judgment, The Answers filed by Defendants Maximus Tree Works, LLC and Johnnie Morales were stricken on June 22, 2026 and Plaintiff stated that defaults would be sought. The Court continued the matter on August 10, 2026 to provide more time for Plaintiff to seek default and a default judgment. Plaintiff was ordered to file a status statement at least five court days prior to today's hearing. Plaintiff has not filed anything since the last hearing. **An appearance is necessary on today's calendar.**

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

This matter is on calendar to reset a trial date. The matter is at issue. The Court designates this as a Plan III matter and intends to set the matter for trial no later than November 17, 2026. Plaintiff has posted jury fees but Defendants have not. Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

HUFFMAN VS. HOLIDAY MARKET SAV MOR FOODS NORTH STATE GROCERY INC., ET AL.

CASE NUMBER: 25CV-0208866

This matter is on calendar for review regarding status of responsive pleading and default. At the last hearing on August 17, 2026, the Court noted that based on the July 2, 2026 service date for Defendant Victor & Evye Szanto Trust, the time for filing a responsive pleading had lapsed. The Court indicated that Plaintiff was expected to take the necessary steps to get the matter at issue. Plaintiff was ordered to file a status statement no later than five court days prior to today's hearing and to provide notice of today's hearing. Plaintiff has not filed any documents since the last hearing. **An appearance is necessary on today's calendar.**

MARTINEZ VS. PARSON

CASE NUMBER: 25CV-0208252

This matter is on calendar for review regarding status of service. The Court notes that the matter was filed on July 22, 2025 and there is still no Proof of Service of Summons on file. The Court previously issued an Order to Show Cause and Plaintiff requested sixty days to complete service and finalize settlement discussions which was granted by the Court. The Court again continued the matter from August 3, 2026 to today at the request of counsel. Nothing has been filed since the June 1, 2026 hearing on the Order to Show Cause. No status statement was filed. Without valid service, the Court will issue an Order to Show Cause Re: Monetary Sanctions against Plaintiff and counsel for failure to timely serve as required by CRC 3.110(b). Hearing on the Order to Show Cause will be on **Monday, November 23, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause. **No appearance is necessary on today's calendar.**

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

This matter is on calendar for review regarding status of judgment. Respondent was ordered to prepare the proposed judgment at the hearing on August 14, 2026. Respondent has submitted an order consistent with the Court's ruling at the hearing denying the petition. That order was executed by the Court on September 17, 2026. In light of the dispositive order, the Court orders the clerk to vacate any future dates and close the file. **No appearance is necessary on today's calendar.**

MEGASTAR FINANCIAL CORP VS. TURNER, ET AL.

CASE NUMBER: 25CV-0207787

This matter is on calendar for status of default judgment. Plaintiff filed a status statement requesting additional time to obtain a declaration. The matter is continued to **Monday, December 21, 2026 at 9:00 a.m. in Department 63** for status of default judgment. If a default judgment is not on file prior to the next hearing, Plaintiff is to file a status statement no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

MIDLAND CREDIT MANAGEMENT, INC. VS. DEROUEN

CASE NUMBER: 25CVG-02391

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on March 16, 2026 indicating the matter would be dismissed no later than February 28, 2028. The matter is continued to **Monday, April 24, 2028 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on April 24, 2028 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the April 24, 2028 hearing. **No appearance is necessary on today's calendar.**

RHYNE VS. SASD REDDING PARTNERS, LLC

CASE NUMBER: 24CVG-00955

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on November 25, 2025 which indicates that the case would be dismissed no later than January 31, 2026. This is the sixth review hearing since the Notice of Settlement was filed. Plaintiff has never filed a status statement addressing when the matter may be dismissed despite being ordered to do so on several occasions. Plaintiff is **ORDERED** to file a status statement no less than five court days prior to any review hearing. Failure to do so will result in the issuance of an Order to Show Cause Re: Monetary Sanctions. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to dismiss the matter without prejudice pursuant to CRC 3.1385(c)(2).**

STIMPEL-WIEBELHAUS ASSOCIATES, INC. VS. CALPORTLAND COMPANY

CASE NUMBER: 25CV-0209086

This matter is on calendar for review regarding status of arbitration. Per the status statements filed, the parties are waiting on the arbitrator's decision. The matter is continued to **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of arbitration. The parties are to file status statements no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

SYNCHRONY BANK VS. SILACCI

CASE NUMBER: 24CVG-01485

This matter is on calendar for review regarding status of dismissal. The Court notes that Plaintiff filed a Motion for Entering Judgment Pursuant to Defendant's Default Under the Settlement Agreement that is noticed for November 16, 2026. The matter is continued to **Monday, November 16, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**

WEBB VS. SIMPSON, ET AL.

CASE NUMBER: 25CV-0207020

This matter was dismissed on this morning's Law & Motion calendar and all future dates were vacated.

WILSON VS. DODSON, ET AL.

CASE NUMBER: 24CV-0204346

This matter is on calendar to reset a trial date. The matter is at issue. The Court finds this matter to be exempt from plan designation and intends to set the matter for trial no later than February 2, 2027. Plaintiff has posted jury fees but Defendants have not. Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**